



Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands
**Request for Departmental Action Fee
Transmittal Form**

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

4

DEP File Number:

3
438-0706

Provided by DEP

A. Request Information

1. Location of Project

42 Mill St.

a. Street Address

Westwood, 02090

b. City/Town, Zip

4246

\$120.00

c. Check number

d. Fee amount

Important:
When filling out forms on the computer, use only the tab key to move your cursor - do not use the return key.



2. Person or party making request (if appropriate, name the citizen group's representative):

Tim McGuire

Name

291 Main St. #8

Mailing Address

Northborough

City/Town

MA

State

01532

Zip Code

(508) 393-3784

Phone Number

Fax Number

tim@goddardconsultingllc.com

Email Address

3. Applicant (as shown on Determination of Applicability (Form 2), Order of Resource Area Delineation (Form 4B), Order of Conditions (Form 5), Restoration Order of Conditions (Form 5A), or Notice of Non-Significance (Form 6)):

Joanne Delapa (Delapa Realty Trust)

Name

PO Box 277

Mailing Address

Norwood

City/Town

MA

State

02062

Zip Code

Phone Number

Fax Number

anthonyp@delapa.com

Email Address

4. DEP File Number:

438-0706

B. Instructions

1. When the Departmental action request is for (check one):

☒ Superseding Order of Conditions – Fee: \$120.00 (single family house projects) or \$245 (all other projects)

☐ Superseding Determination of Applicability – Fee: \$120

☐ Superseding Order of Resource Area Delineation – Fee: \$120

Send this form and check or money order, payable to the *Commonwealth of Massachusetts*, to:

Department of Environmental Protection
Box 4062
Boston, MA 02211

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B. Instructions (cont.)

2. On a separate sheet attached to this form, state clearly and concisely the objections to the Determination or Order which is being appealed. To the extent that the Determination or Order is based on a municipal bylaw, and not on the Massachusetts Wetlands Protection Act or regulations, the Department has no appellate jurisdiction.
3. Send a **copy** of this form and a **copy** of the check or money order with the Request for a Superseding Determination or Order by certified mail or hand delivery to the appropriate DEP Regional Office (see <https://www.mass.gov/service-details/massdep-regional-offices-by-community>).
4. A copy of the request shall at the same time be sent by certified mail or hand delivery to the Conservation Commission and to the applicant, if he/she is not the appellant.